



File No.: EXP202410994

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on June 19, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the rights of Access and Erasure against PRÉSTALO ONLINE, S.L. (hereinafter, the respondent) without their request receiving the legally established response.

The complaint is made for the lack of attention by the respondent to the complainant's request exercising the right of access to their personal data subject to processing and for the incomplete attention by the respondent to the complainant's request exercising the right of erasure of their data. The complainant states that, on June 19, 2024, they requested the respondent access to their personal data subject to processing and, specifically, "a copy of all personal data they have registered about me, detailed information on how and for what purposes this data is being used, details of any third party with whom this data has been shared."

Furthermore, they state that they also requested the erasure of their data and "confirmation that my personal data has been deleted from any third party with whom this data has been shared, in accordance with the regulations."

However, the complainant states that the respondent has not responded to their access request nor has confirmed "the deletion of my personal data to third parties," as they only received a response from the respondent indicating that they had deleted the complainant's data from their systems, without addressing the other issues (exercise of the right of access and erasure of their personal data by the data recipients).

They add that, following the events, they have reiterated their request with the same result.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

As a consequence, on September 19, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed. The aforementioned agreement granted the responding party the opportunity to present their arguments within a period of ten working days, summarizing the following allegations:

"It has been verified that this error is occurring in the actions of this employee and that the instructions and procedures implemented by PRESTALO have not been followed. Therefore, an incident is opened by the Data Protection Officer of the Entity, analyzing the specific case, and the following corrective measures are adopted: the implementation of a new awareness and training action for the Customer Service regarding the handling and attention to requests for the exercise of data protection rights and the distinction of these requests from the request for Profile Deactivation and Deletion, since the employee who attended to Mr. A.A.A.'s request acted as if it were a request for User Profile Deactivation and deletion in PRESTALO, given that 99% of the requests received from users focus on the request for Profile Deactivation and deletion of loan request data made on www.prestalo.com, and

mainly in cases where PRESTALO resolves such loan requests negatively.

Additionally, as a corrective measure, a communication action will be carried out to all employees of the Customer Service informing them that, in the case of receiving any request from an interested party for the exercise of their personal data protection rights, specifically, any request that includes the exercise of the right of access, the right to rectification of data, the right to erasure of data, the right to object to processing activities, the right to restriction of processing, and the right to data portability, these must be immediately communicated internally to the Data Protection Officer of the Entity, so that they can study such requests and respond to them within the legally established deadlines set by the current personal data protection regulations. Document No. 6 is incorporated into this writing, which is the Communication that has been made by PRESTALO to all members of the Customer Service.

As expressed in the previous allegations and in the relationship of electronic communications exchanged between the Customer Service and Mr. A.A.A., when the Customer Service proceeded to delete all personal data held in PRESTALO's systems of the Applicant, it was not possible for PRESTALO to respond, even if it was done outside the deadline set by the regulations, to the exercise of the Right of Access to Personal Data requested, since upon effectively deleting all information, it was not possible to recover it to resolve the incident that occurred.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

The captures of the actions carried out by PRESTALO are provided, which certify the actions of deletion of the data operated on June 19, 2024."

FOURTH: After examining the document submitted by the responding party, it is transferred to the claiming party, so that, within a period of fifteen working days, they may formulate the allegations they deem appropriate, not formulating allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was transferred to the responding party for analysis, to respond to this Agency within one month, and to certify that they had provided the

claimant with the due response.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/7

The result of this transfer did not allow for the understanding that the claims of the claiming party were satisfied. Consequently, on September 19, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission to processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to attend to such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/7

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the "data or processing activities to which the request refers." The right shall

be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will only consider whether the requested rights, rights of access and erasure, have been addressed or not by the data controller. The right of erasure was addressed as the respondent informed the claimant that their data had been deleted.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

In the case analyzed here, the claiming party exercised their right of Access and, after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response, as the requested access was not granted.

During the processing of this procedure, the responding entity has replied to this Agency and to the claiming party. The responding party states that, since they proceeded to delete the data, it is not possible to fulfill the right of access, as they no longer have it.

In this regard, it should be noted that when the rights of access and deletion are exercised, both rights must be addressed; it cannot be accepted that, by carrying out the deletion of personal data, under the guise of the regulations, one seeks to leave another exercised right unanswered.

According to data protection regulations, the deletion of data as established in Article 32 of the LOPDGDD must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion.

This action is subject to certain conditions aimed at ensuring and guaranteeing the affected party's right to the protection of their personal data.

The blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly data protection authorities, for the requirements of possible responsibilities arising from the processing and for the statute of limitations of these. Therefore, the access request must be addressed in accordance with the provisions of Article 15 of the GDPR.

It should be noted that the blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures to prevent its processing, including its visualization, but does not imply that the data that the controller had and processed during the contractual relationship cannot be made available to the affected party, in case responsibilities arise from its processing or because it is deemed more protective to provide the blocked personal data for the knowledge of the interested parties.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made,

leaving it without the response that those responsible must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification, indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response, in any case, using any means that justifies the receipt of the response.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/7

In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has passed.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to formally uphold the present claim due to the response being issued late, without requiring additional actions by the data controller in order to issue a new certification regarding the attention to the right.

Having reviewed the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by A.A.A. against PRÉSTALO ONLINE, S.L. Nevertheless, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to PRÉSTALO ONLINE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es